

25NWCV03237 25NWCV03237

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25NWCV03237 Hearing Date: July 21, 2026 Dept: SED

SONIA MARIA BENAVIDES V.

CITY OF DOWNEY, ET AL.

CASE NO.: 25NWCV03237

HEARING: 07/21/2026 @ 9:30 a.m.

#6

TENTATIVE ORDER

Plaintiff Sonia Maria

Benavides's Motion to Quash Deposition Subpoena

for Production of Records is GRANTED.

Plaintiff Sonia Maria

Benavides's request for monetary sanctions is DENIED.

Moving party to give notice.

Plaintiff Sonia Maria Benavides asks

the Court to quash the subpoena issued by Defendant City of Downey (Defendant) in its entirety. Alternatively, Plaintiff

requests that the Court modify the subpoena to limit production to records directly related to the injuries allegedly caused by the subject incident and award attorney's fees and costs under Code of Civil Procedure section 1987.2.

Background

On September 11, 2025, Plaintiff filed the operative Complaint against Defendants City of Downey, County of Los Angeles, and Does 1 through 50, inclusive, asserting two causes of action: (1) Premises Liability and (2) Dangerous Condition of Public Property (Gov. Code Section 835).

On February 6, 2026, Defendant issued a deposition subpoena for production of records to non-party, PIH Health Downey/Human Resources, seeking information regarding Plaintiff's medical history. (Subpoenas)

On February 27, 2026, Plaintiff filed the instant motion to quash Defendant's Subpoenas.

On July 8, 2026, Defendant filed its opposition.

On July 14, 2026, Plaintiff filed a reply.

Legal Standard

Code of Civil Procedure section

1987.1 states that "[i]f a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders." (Code Civ. Proc., § 1987.1, subd. (a).) "In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person." (Ibid.) Subdivision (b) provides that a party may make a motion pursuant to subdivision (a). (Code Civ. Proc., § 1987.1, subd. (b).)¿

Analysis

Plaintiff argues the subpoena should be quashed because it is overbroad, violates Plaintiff's constitutionally protected right to privacy, seeks records that are not directly relevant or essential to the subject matter of this litigation, and impermissibly demands production of privileged and confidential medical records. (Notice, p. 2.) Plaintiff asserts that although limited by time, the subpoena seeks "any and all" medical records without limiting production to the body parts or conditions allegedly injured in the subject incident, which Plaintiff contends amounts to an impermissible fishing expedition into unrelated medical history. (Motion pp. 6-7.) Plaintiff further argues that filing a personal injury action waives privacy only as to the specific medical conditions placed in controversy, not Plaintiff's entire medical history, and that Defendant has failed to demonstrate a compelling need or direct relevance sufficient to justify such broad discovery. (Id. at pp. 4, 6-7.) Plaintiff also contends Defendant cannot rely on the Complaint's boilerplate injury allegations to establish a blanket waiver of medical privacy and that the subpoena is premature because Defendant had not yet obtained Plaintiff's verified discovery responses identifying the specific injuries at issue before seeking Plaintiff's entire medical file. (Id. at pp. 6-7.)

In opposition, Defendant argues that the subpoena is reasonably tailored to Plaintiff's broad physical injury and damages claims, including claims for past and future medical expenses, wage loss, loss of earning capacity, and future medical treatment. (Opp., pp. 1-3.) Defendant contends Plaintiff has placed her medical condition directly at issue, thereby waiving any privacy interest as to records relevant to those claims, and that the requested records are necessary to evaluate causation, the nature and extent of Plaintiff's injuries, preexisting conditions, and prognosis. (Id. at pp. 3-6.) Defendant further argues Plaintiff misapplies the authorities on which she relies, that the subpoena seeks only physical medical records and that Plaintiff has failed to identify any specific category of unrelated records warranting exclusion. (Id. at pp. 4-6.) Defendant also contends Plaintiff's proposed "first look" procedure is unsupported by law and requests that the motion and Plaintiff's request for sanctions be denied. (Id. at pp. 6-8.)

In reply, Plaintiff argues Defendant's opposition confirms that the subpoena, as originally drafted, was facially overbroad because Defendant only identified the specific body parts at issue after Plaintiff filed the motion. (Reply, pp. 1-3.) Plaintiff contends she has placed only her

right patella, cervical spine, lumbar spine, and left shoulder injuries at issue, and therefore has not waived her constitutional privacy rights as to her entire medical history. (Id. at pp. 2-6.) Plaintiff further argues Defendant's reliance on the interconnected nature of the skeletal system and alleged claims for wage loss and loss of earning capacity does not justify a subpoena seeking all medical records, particularly where Plaintiff denied seeking loss of income or earning capacity in verified discovery responses. (Id. at pp. 5–6.) Finally, Plaintiff contends Defendant improperly rejected Plaintiff's proposed "first look" procedure, which Plaintiff argues would have protected confidential medical information while permitting discovery of relevant records, and therefore renews the request that the subpoena be quashed or, alternatively, narrowed and that sanctions be awarded. (Id. at pp. 7-8.)

Medical history is protected by the California constitutional right to privacy. (See *John B. v. Superior Court* (2006) 38 Cal.4th 1177, 1198 [finding medical records are protected by the California right to privacy].) Yet the privacy protection is not absolute—medical histories are discoverable to the extent the need for discovery outweighs the patient's privacy concerns. (Id. at p. 1199.) All medical histories relating to a plaintiff's claimed injuries in a personal injury action are discoverable. (See Evid. Code, §§ 996, 1016; *Britt v. Sup.Ct. (San Diego Unified Port Dist.)* (1978) 20 Cal.App.3d 844, 864 (*Britt*).) However, medical records pertaining to an unrelated condition are discoverable on a showing of "good cause" if the condition is relevant to the issue of proximate causation. (See Evid. Code, § 999; *Slagle v. Superior Court* (1989) 211 Cal.App.3d 1309, 1313 (*Slagle*).)

Here, the Court agrees with Plaintiff that the subpoena, as drafted, is overbroad. Plaintiff has placed her physical condition at issue by bringing this personal injury action, thereby waiving the physician-patient privilege and her privacy interest only as to those medical conditions reasonably related to the injuries she claims were caused by the incident. (See Evid. Code, §§ 996, 1016; *Britt*, supra, 20 Cal.3d at 864.) While medical records concerning unrelated conditions may also be discoverable upon a showing of good cause that they are relevant to proximate causation, Defendant bears the burden of making that particularized showing. (Evid. Code, § 999; *Slagle*, supra, 211 Cal.App.3d at 1313.)

The subpoena served on PIH Health does not contain any such limitation. Rather, it seeks "[a]ny and all" medical records, reports, billing records, diagnostic testing, office visits, emergency room visits, hospital stays, surgeries, and insurance records for Plaintiff from January 1, 2016, through the present, without limitation as to body part, medical condition, or treatment related to the subject incident. (Plaintiff's Separate Statement.) As drafted, the subpoena encompasses Plaintiff's entire medical history, including records wholly unrelated to the injuries alleged in this action.

The Court acknowledges Defendant's argument that Plaintiff's alleged injuries to the right knee, cervical spine, lumbar spine, and left shoulder necessarily implicate other portions of the skeletal system and therefore justify broader discovery. Additionally, the Court agrees that records relating to other body parts or preexisting conditions may be discoverable where they bear on causation. However, Defendant offers only a generalized assertion regarding the interconnected nature of the skeletal system. Defendant has not identified any preexisting injury affecting another area of Plaintiff's body, nor explained how records concerning unrelated treatment are relevant to whether the subject incident caused Plaintiff's claimed injuries. Such generalized assertions are insufficient to establish the good cause required to obtain medical records concerning conditions not directly placed at issue. (See *Slagle*, supra, 211 Cal.App.3d at 1313.)

Moreover, although Plaintiff's verified discovery responses were served after the subpoena was issued, they now identify the injuries Plaintiff attributes to the incident as a right patella fracture, cervical pain and injury, lumbar spine pain and injury, and left shoulder pain and injury. (See Sprenger Decl., ¶¶ 2-3, Exs. A, B [Response to Form Interrogatory No. 6.2; Response to Special Interrogatory No. 12].) These responses further demonstrate that the subpoena, as drafted, is broader than necessary because it is not limited to those injuries or to treatment reasonably related thereto.

Accordingly, Plaintiff's motion to quash deposition subpoena is GRANTED.

Rather than quashing the subpoena in its entirety, however, the Court exercises its authority under Code of Civil

Procedure section 1987.1 to modify the subpoena. Because Plaintiff does not challenge the subpoena's temporal limitation, the Court leaves intact the subpoena's request for records from January 1, 2016, through the present. However, the subpoena shall be modified to limit production during that time period to medical records reasonably related to Plaintiff's claimed injuries, including treatment concerning the right patella/right knee, cervical spine/neck, lumbar spine/low back, and left shoulder, as well as any preexisting conditions or injuries affecting those body parts.

Sanctions

Although Plaintiff requests monetary sanctions, the Court declines to award them. As an initial matter, Plaintiff did not specify the amount of sanctions sought until the reply, depriving Defendant of an opportunity to address the reasonableness of the requested amount. In any event, the Court finds sanctions are unwarranted under these circumstances, where there is no indication that Defendant acted in bad faith in propounding the Subpoena and it engaged in the meet and confer process.

Accordingly, Plaintiff's request for monetary sanctions is DENIED.

Conclusion

Based on the foregoing, Plaintiff Sonia Maria Benavides's Motion to Quash Deposition Subpoena for Production of Records is GRANTED.

Plaintiff Sonia Maria Benavides's request for monetary sanctions is DENIED.